

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Purchased:

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DOMINICK BOOKARD,

Plaintiff,

-against-

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County
as the place of trial.

THE CITY OF NEW YORK, P.O. JOSEPH SPATARO, Shield
No. 31616, Individually and in his Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as the true
names are presently unknown),

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK

August 12, 2014

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007
Bronx, NY 10457

P.O. JOSEPH SPATARO, Shield No. 31616
c/o NYPD Headquarters
1 Police Plaza
New York, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

DOMINICK BOOKARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOSEPH SPATARO,
Shield No. 31616, Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently
unknown),

Defendants.

-----X

Plaintiff DOMINICK BOOKARD, by his attorneys, COHEN & FITCH LLP,
complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff DOMINICK BOOKARD is an African-American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendant P.O. JOSEPH SPATARO, Shield No. 31616 and POLICE OFFICERS "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about October 11, 2013 in the County of Kings, City, and State of New York, plaintiff DOMINICK BOOKARD was inside his place of residence, located at 730 Herkimer Street, Brooklyn, New York, NY.

9. At the aforesaid time and place, NYPD officers entered plaintiff's residence without a search warrant, searched plaintiff and his residence, and immediately placed him under arrest with his arms tightly behind his back.

10. At no time on October 11, 2013, did defendants possess probable cause to arrest plaintiff.

11. At no time on October 11, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search.

13. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.

14. Plaintiff was charged with Criminal Possession of a Controlled Substance in the Seventh Degree and Criminally Using Drug Paraphernalia in the Second Degree.

15. At no time on October 11, 2013, did defendant possess a controlled substance, use drug paraphernalia, or behave unlawfully in any way.

16. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office.

17. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely stated that plaintiff possessed a controlled substance – crack cocaine – and that plaintiff was in possession of drug paraphernalia – empty ziplock bags.

18. As a result of his unlawful arrest, plaintiff DOMINICK BOOKARD spent approximately thirty-six (36) hours in police custody and made approximately four (4) court appearances before all charges against him were dismissed in their entirety on March 11, 2014.

19. As a result of the foregoing, plaintiff DOMINICK BOOKARD sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

21. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

22. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

25. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

27. Defendants misrepresented and falsified evidence before the New York County District Attorney.

28. Defendants did not make a complete and full statement of facts to the District Attorney.

29. Defendants withheld exculpatory evidence from the District Attorney.

30. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

31. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

32. Defendants acted with malice in initiating criminal proceedings against plaintiff.

33. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

34. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

35. Defendants acted with malice in continuing criminal proceedings against plaintiff.

36. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

37. Notwithstanding the perjurious and fraudulent conduct of defendants, all charges against plaintiff were dismissed on or about March 11, 2014.

38. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants created false evidence against plaintiff.

41. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

42. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

43. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

44. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

47. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause;
- iii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iv. fabricating evidence in connection with their prosecution in order to cover up police misconduct.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference

to the safety, well-being and constitutional rights of the plaintiff.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

54. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

55. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

56. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
August 12, 2014

BY: 

GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

ATTORNEY'S VERIFICATION

JOSHUA FITCH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff DOMINICK BOOKARD in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
August 12, 2014



Joshua Fitch

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DOMINICK BOOKARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOSEPH SPATARO, Shield No. 31616, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY

SUITE 1800

NEW YORK, NEW YORK 10279

(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....

Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at

on

, at

M.

Dated:

ATTORNEY FOR

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY, SUITE 1800

NEW YORK, N.Y. 10279

(212) 374-9115